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RESEARCH ARTICLE



Reimagining justice: peacemaking criminology and alternative justice systems in the Kenyan context

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ABSTRACT

Alternative justice systems and peacemaking criminology share a bond in addressing the root causes of crime, promoting healing and reconciliation, and fostering a more holistic understanding of justice. As a theoretical framework, peacemaking criminology challenges traditional punitive approaches to crime by advocating for nonviolent conflict resolution, social justice, and community empowerment. It views crime as a social problem rooted in structural inequalities, systemic violence, and interpersonal conflicts rather than solely as individual deviance deserving punishment. Alternative justice systems, such as restorative justice and transformative justice, align closely with the principles of peacemaking criminology. They prioritize repairing harm, rebuilding relationships, and addressing underlying social issues to avoid future conflicts and criminal behavior. These systems facilitate meaningful dialogue and decision-making among victims, offenders, and communities, as well as reconciliation, healing, and accountability. Furthermore, while both address crime and conflict, they also recognize the significance of social networks, support structures, and community resources in fostering resilience, rehabilitation, and long-term peacebuilding. This article investigates how peacemaking criminology, through alternative justice systems, can transform criminal justice systems around the world.

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Introduction

Scholars posit that alternative justice systems and peacemaking criminology are interconnected frameworks that challenge traditional punitive paradigms and advocate for more restorative, transformative, and community-centered approaches to justice (Fuller & Wozniak, 2017; Klenowski, 2009). They share a vision of justice that prioritizes healing, reconciliation, and social change, aiming to create safer, more equitable societies (Zehr, 1994).

The mainstream criminal justice system has long been characterized by its punitive approach. It focuses primarily on punishment and retribution as means of addressing crime. However, this traditional paradigm has faced criticism for its limited effectiveness in promoting long-term community safety, healing, and social justice. As a result of these constraints, alternative justice systems have emerged as

promising options for supplementing or even replacing traditional approaches to justice. Among these alternatives, peacemaking criminology has developed prominence for its emphasis on nonviolent conflict resolution, social justice, and community empowerment.

Peacemaking criminology represents a departure from the punitive norms of traditional criminal justice, advocating for a more holistic understanding of crime as rooted in social inequalities, systemic violence, and interpersonal conflicts (Hensler, 2003). It seeks to address the underlying causes of crime and promote healing and reconciliation among all parties involved. Drawing on principles from sociology, psychology, and conflict resolution, peacemaking criminology may offer a comprehensive framework for transforming how societies respond to harm and promote peace (Bazemore & Schiff, 2011).

The foundations of peacemaking criminology can be traced back to scholars such as Pepinsky and Quinney (1991), who challenged prevailing notions of crime and punishment in the 1960s. Quinney (1993), for instance, argues that crime is a social construct shaped by power dynamics, economic inequalities, and cultural factors. Thus, traditional punitive responses are inadequate in addressing crime, and attempts have been made to develop alternative approaches that prioritize healing, reconciliation, and social justice (Pepinsky, 2018).

One core assumption in peacemaking criminology is *empathy*. Pepinsky (2006b) defines empathy as 'an emotional glue that binds people together in respect and dignity' (p. 188). Consequently, empathy is not only an element of restorative justice but one of its fundamental drivers. Wallis (2014) argues that empathy possesses the mirroring aspect that stands in direct opposition to antipathy, allowing for a dynamic process where each person expresses suffering while simultaneously responding to the suffering in the other. Accordingly, restorative justice is a conversation that seeks to draw people in while loosening the knot of entanglement created by crime, and this knot can only be undone through empathy (Wallis, 2014).

Restorative justice, therefore, emphasizes repairing the harm caused by crime and restoring relationships between victims, offenders, and communities. Restorative justice processes, such as victim-offender mediation and circle sentencing, provide opportunities for dialogue, healing, and accountability outside of the formal courtroom setting (Braithwaite, 2002). By involving all stakeholders in the justice process and addressing the needs and concerns of those affected by crime, restorative justice offers a more holistic and participatory approach to justice.

Transformative justice is another alternative approach aligned with the principles of peacemaking criminology. While it is distinct from traditional justice systems that focus solely on individual accountability and punishment, transformative justice seeks to address the root causes of harm and violence within communities (Barak, 2005). It aims to transform the social conditions and power dynamics that contribute to crime by promoting healing, community accountability, and systemic change. Through practices such as community-based conflict resolution and transformative mediation, transformative justice offers a pathway to healing and reconciliation for both individuals and communities (Goodman.).

Against this backdrop, in recent years, there has been growing interest in mainstreaming peacemaking criminology principles into the broader criminal justice system. Policymakers, practitioners, and researchers alike recognize the potential of alternative justice approaches to complement and enhance traditional responses to crime. The recent introduction and implementation of the Alternative Justice Systems Policy (AJS

Policy) in the judicial system in Kenya underscores a pluralist approach to justice that responds to a panoply of factors, which include socio-economic, cultural, and the diversity of the Kenyan people.

However, this integration is not without its challenges. Resistance from traditional criminal justice institutions, lack of adequate resources and support, and skepticism from stakeholders are among the obstacles that must be overcome. The Constitution of Kenya, for instance, requires courts to embrace alternative forms of dispute resolution, including traditional dispute resolution mechanisms. Examining Article 159(2)(c) which states:

In exercising judicial authority, the courts and tribunals shall be guided by the following principles— (c) alternative forms of dispute resolution, including reconciliation, mediation, arbitration, and traditional dispute resolution mechanisms shall be promoted . . . ,

It becomes apparent that the Alternative Justice Systems (AJS) Framework Policy¹ was a result of the requirements of Article 159(2) of the Constitution. Notably, the former Chief Justice (CJ), Dr. Willy Mutunga, commissioned a task force in March 2016 to examine the viability of establishing a policy that would guide the implementation of the constitutional requirement spelled out under Article 159(2)(c) of the Constitution of Kenya. In April 2020, therefore, CJ Mutunga's successor, CJ David Maraga (now retired), launched the AJS Policy. Former Chief Justice Maraga emphasized the Policy's significance in achieving the transformational agenda outlined in Kenya's 2010 Constitution. The Policy provides a dialogic space for both the Judiciary and Alternative Justice Systems while embracing a sociological and situated jurisprudence as required by the Constitution.

CJ Martha Koome, the current Chief Justice, has continued her predecessor's plea to elevate AJS to ensure justice is not only done but seen to be done. In the High Court Leaders Conference in March 2024, she urged judges to champion the multi-door approach to the delivery of justice.² She stated, '*... I urge you to encourage the uptake and use of mediation, alternative justice systems (AJS), and specialized courts, through which we aim to make our justice system more responsive to the needs of Kenyans, particularly the vulnerable.*' Statistics from the AJS webpage indicate that there are currently 178 alternative justice projects adopted across Kenya's 47 counties. These initiatives contribute to a more inclusive, responsive, and outcomes-oriented approach to addressing crime and advancing social justice.³

We argue, therefore, that peacemaking criminology offers a transformative vision for the future of criminal justice, one that prioritizes healing, reconciliation, and community empowerment. In embracing alternative justice approaches such as restorative justice, transformative justice, and other related models, societies can move towards a more just, equitable, and peaceful future. The Kenyan case study could be a blueprint for other jurisdictions on how a justice plurality can enhance justice and promote inclusivity.

Peacemaking criminology – a humanistic approach to crime

Peacemaking criminology represents a transformative approach to understanding and addressing crime, shifting away from punitive measures towards nonviolent conflict

resolution, healing, and reconciliation (Pepinsky, 2006a). This paradigm challenges traditional notions of justice by emphasizing social justice, community involvement, and systemic change. Rooted in sociological and criminological theories, peacemaking criminology departs radically from the war on crime school of thought that is often viewed as inherently violent in its methods and outcomes (Dodson, 2014). Importantly, it offers alternative frameworks for responding to crime that prioritize the needs of victims, offenders, and communities alike.

This article thus provides a detailed analysis on peacemaking criminology, supported by case studies from New Zealand and the United States to illustrate its principles and applications in practice. The case study choice is arbitrary; however, the two cases represent successful jurisdictions that have attempted to incorporate justice prisms that support peacemaking criminology perspectives. The New Zealand example examines the concept of Family Group Conferences (FGCs) from a *Te Ao Māori* perspective, while the United States example examines transformative justice through the Bay Area Transformative Justice Collective Pod Model as discussed later in the chapter. The choice to examine examples from these two countries is informed by the mirroring effect in the application of restorative and transformative justice mechanisms by both countries. Additionally, both countries deploy alternative epistemologies that aim to promote the pluriversity of knowledge that expands beyond dominant paradigms of thinking.

In examining its historical origins, it can be argued that peacemaking criminology emerged in response to the limitations of traditional criminological theories and criminal justice practices in addressing the root causes of crime and promoting lasting peace in communities (Pepinsky & Quinney, 1991). Influenced by sociological peacemaking, criminologists critique the punitive nature of the criminal justice system and advocate for alternatives that prioritize healing, restoration, and social justice.

Central to peacemaking criminology is the belief that crime is a social construct shaped by structural inequalities, power dynamics, and systemic violence. Rather than viewing crime solely as individual deviance deserving of punishment, peacemaking criminology examines the broader social, economic, and political factors that contribute to criminal behavior. This perspective highlights the importance of addressing underlying social injustices and promoting systemic change to prevent crime and promote peace.

Key principles of peacemaking criminology

Peacemaking criminology espouses the following principles. There are key assumptions that drive this theoretical perspective. First, there is the concept of *nonviolence*. Peacemaking criminology rejects violence as a means of addressing crime and conflict, advocating for nonviolent approaches to resolving disputes and restoring relationships. The second is *healing and restoration*. Central to peacemaking criminology is the idea of healing and restoration, which emphasizes repairing the harm caused by crime and addressing the needs of victims, offenders, and communities. The third principle is *social justice*.

Peacemaking criminology is grounded in principles of social justice, which seek to address the root causes of crime by challenging systemic inequalities and promoting equity and fairness in society. The fourth principle is *community empowerment*. Peacemaking criminology

emphasizes the importance of community involvement and empowerment in responding to crime and conflict, recognizing the expertise and resources that communities possess in addressing their own needs (Fuller, 1998; Quinney, 1991).

Restorative justice in New Zealand: the case of family group conferences

Restorative justice programs in New Zealand have inspired practitioners around the world to emulate the New Zealand practice. This is particularly seen in the way the country deals with wrongdoing by juveniles (Shriver & Shriver, 2013). In the 1980s, the New Zealand government introduced restorative justice programs as an alternative to traditional court processes for handling youth offenders under the age of seventeen. Passed in Parliament in 1989, the Youth Court Act sought to deliver young offenders from lengthy court trials to informal counseling programs (Shriver & Shriver, 2013). These programs, known as FGCs, originated in New Zealand and are organized by Oranga Tamariki (Ministry of Children).

They bring together the offender, victim, and their respective families (*whānau*) and supporters to discuss the harm caused by the offense and develop a plan for restitution and rehabilitation. The justification for instituting FGCs was informed by a 1989 report of a New Zealand government committee, which observed that the chances of a prisoner reforming in prison are minimal, given the overwhelming atmosphere of hopelessness in prisons. Instead, it found that prisons are sites for learning new tactics to commit more profitable ones in the future (Report of the Ministerial Committee of Inquiry into the Prison System, 1989).

Rooted in Māori values, FGCs emphasize the importance of the family and community in addressing issues related to young offenders. Described as forums that involve a lot of heavy conversations and pain, FGCs in New Zealand offer victims the opportunity to be heard while providing forums for genuine confession by offenders. This differs from the court process, which mostly takes on the attitude of proving one's innocence (McElrea, 1998). It is important to note, however, that FGCs as practiced in New Zealand are not soft on crime, as one may be tempted to imagine (Shriver & Shriver, 2013). On the contrary, these forums provide no room for excuses and raise the accountability and responsibility bar high.

Research has shown that FGCs in New Zealand have been successful in reducing reoffending rates and increasing victim satisfaction compared to traditional court processes. From a restorative justice standpoint, FGCs in New Zealand transfer power from the state, which is principally the courts' power, to the community (McElrea, 1998). This is a powerful element, which exemplifies *Te Ao Māori* and prioritizes *whānau*-centred initiatives over individualism.

Highlighting the significance of FGCs, therefore, it becomes apparent that they are not only spaces designed for healing between the victim and the offender but are also spaces for empowerment, offering community-based solutions and hence giving families and the community agency. By emphasizing dialogue, accountability, and community involvement, restorative justice in New Zealand exemplifies the principles of peacemaking criminology in action.

Transformative justice in the United States: the case of the Bay area transformative justice collective Pod model

In the United States, transformative justice initiatives have emerged as grassroots responses to violence and harm within communities. These initiatives seek to address the root causes of violence by challenging systems of oppression and promoting healing and accountability. One example of transformative justice in action is the Bay Area Transformative Justice Collective (BATJC) Pod Model. BATJC provides support and resources to survivors of violence, facilitating processes of healing and accountability that center the needs and experiences of survivors. Through community-based interventions, education, and advocacy, BATJC works to transform the conditions that perpetuate violence and promote collective liberation. Its goal is to strengthen and support the community's collective capacity to respond to harm in all the spaces (Mingus, 2016).

In 2014, BATJC began using the term 'pod' to refer to a specific type of relationship within the field of transformative justice (Mingus, 2016). This was informed by the need to describe the kind of relationship experienced between people who support one another around violent, harmful, and abusive experiences, regardless of their positionality as survivors, bystanders, or offenders (Mingus, 2016). These people sit in pods and constitute a support group that one would turn to in the event of violence. The pods are thus spaces for support by ensuring accountability, collective healing, and behavior transformation.

Juxtaposing the BATJC Pod Model to FGCs in New Zealand, some similarities come to the fore. For instance, both promote the culture of healing, which collectively leads to a transformative and restorative praxis, respectively. Discussing the concept of healing in relation to transformative justice, Mara (2015, p. 2) stipulates that 'healing is a process that is inclusive of our mind, body, spirit and aims to restore and renew the emotional and spiritual wellbeing of students, educators and the broader community.' The examples discussed above demonstrate that both restorative justice and transformative justice exemplify the tenets of peacemaking criminology, which offers a comprehensive framework for addressing crime and conflict that prioritizes nonviolence, healing, and social justice. By challenging the traditional punitive view of crime, peacemaking criminology seeks to create more just and peaceful communities. Accordingly, the case studies from New Zealand and the United States illustrate the principles and applications of peacemaking criminology in practice, highlighting the transformative potential of these approaches in responding to crime and promoting social change.

Alternative justice system: the Kenyan experience

The concept of justice among Kenyans is intricately linked to their lived experiences. Similar to any society, the realities faced by Kenyans are associated with numerous conflicts that arise from daily life within families, communities, and institutions (Judiciary of Kenya, 2020). Since Kenyans perceive justice as a process that fosters social cohesion and peaceful coexistence, their collective understanding of justice leans more towards backward and forward-looking approaches, such as restorative and rehabilitative mechanisms rather than punitive ones, which often marginalize and banish the voice of ordinary people (Lee, 2023). Indeed, it can be argued that Kenyans have a strong belief that institutions responsible for administering justice should be situated in close social

proximity to the community. The ideal envisioned is one of a voluntary, harmonious, and restorative approach to justice.

In light of this, only three percent of Kenyans seek redress through the formal legal system (Lee, 2023). A majority of Kenyans utilize a variety of other alternative strategies to resolve their legal problems, including seeking assistance from chiefs, religious leaders, and local elders. This prevalence can be attributed to the faster, cheaper, accessible, and restorative nature of these alternative justice processes. This restorative component seeks to restore human dignity through repairing harm and rebuilding trust. These, therefore, help in aligning legal practices with African philosophies of shared humanity and collective well-being, which can be summarized as Ubuntu, which translates to – I am because you are; we are because you are (Ogude, 2019).

Ubuntu is reflective of how the African perceives the world and his reality as interconnected while appreciating the role of society in this dynamic (Jimoh, 2017). The point of departure here is not the ‘I’ but the ‘We, which means that the individual derives their existence, dignity, and honor from the community (Nkemnkia, 1999). Ubuntu thus emerges as ‘a call to corrective measures’ (Masolo, 2019, p. 68) to the injustices within Kenya’s formal justice system. It seeks to acknowledge and restore the victim, offender, and community, aiming for closure and harmony, ultimately empowering individuals and strengthening social bonds in ways often missed by formal, adversarial legal systems.

In recent years, Alternative justice systems have gained traction as innovative approaches to address crime, conflict, and harm. Departing from traditional punitive measures, these systems prioritize healing, restoration, and community involvement. Rooted in the principles of social justice, inclusivity, and empowerment, alternative justice systems offer holistic responses to communities. This paper provides a detailed background on alternative justice systems, supported by case studies that highlight their principles and applications in practice. Alternative justice systems have emerged in response to the limitations and criticisms of traditional criminal justice approaches.

Traditional systems are characterized by punitive measures such as incarceration and punishment, and have been criticized for their ineffectiveness in addressing the root causes of crime, promoting rehabilitation, and fostering community well-being. Alternative justice systems offer alternative paradigms that prioritize healing. Examining the Kenyan experience, Article 48 of the Constitution of Kenya (2010) provides that all persons have the right to access to justice. The State is thus obligated to ensure that every Kenyan has access to the courts and legal processes and that this right must not be impeded by legal fees, which must always be reasonable (Constitution of Kenya, 2010). However, the reality is that ninety percent of the Kenyan population has been marginalized from the formal justice system and is unable to access justice. This is especially true for the many Kenyans living in rural areas who cannot afford litigation fees (Maina & Muriuki, 2021).

These sentiments were echoed by the former Chief Justice of Kenya, Willy Mutunga, in August 2012 while addressing the issue of resorting to alternative dispute resolution mechanisms. He noted that courts in Kenya have used remote and mystical processes that are often out of touch with the reality of the ordinary Kenyan. His sentiments provoke the question of whether Kenya’s formal justice system meets the needs of the majority of the Kenyan population and point to the need for undertaking a historical pilgrimage by going back into the past to locate where the rain began to beat Kenya in matters of justice. As

Chinua Achebe observes, "A man who does not know where the rain began to beat him, cannot say where he dried his body (Achebe, 2012, p. 62).

Indeed, what is rather ironic is that the Alternative justice system not only draws from the African traditional justice systems but is a fundamental part of solving disputes the African way, using the tenets of the Ubuntu philosophy. It therefore raises the question of why the term 'alternative' is used to refer to this form of justice. Some scholars argue that alternative justice simply presupposes the existence of a main method of resolving disputes. While this is true, according to the Oxford English Dictionary, the term 'alternative' means something that one can choose to do out of two or more possibilities. Its synonyms include terms such as 'other', 'second option', and 'substitute'.

The point here is not informed by semantics but rather to investigate why a system of justice that was originally existent before colonialism would now be relegated as a second option or alternative. Examining the background of alternative justice systems, therefore, is crucial because it helps to reveal the ghosts of colonial legacies that continue to hold the African continent, and especially in this case, Kenya, hostage. This hostage situation is a form of epistemic violence inflicted during colonialism, which left indigenous people with perpetual self-doubt about their traditional justice mechanisms. In essence, colonialism introduced a complicated and overlapping legal system that sought to deepen administrative control over the indigenous Kenyan population (Lee, 2023). Accordingly, the colonial regime applied a racially stratified dual legal system, with a separate set of laws for Africans and another set for non-Africans. We, therefore, cannot discuss alternative justice systems without highlighting the undertones of inferiorization that continue to plague the very field of indigenous justice.

As alluded to earlier, this can be largely attributed to colonial influence, where customary law was perceived to be inferior to English common law (Ochich, 2012). However, on a more optimistic trajectory, the journey of restoring the respectability of customary law has become ineluctable given that it is part of the African way of life and therefore offers realistic solutions that encourage healing, restoration, and social harmony.

Despite the echoes of colonial legacies, the Kenyan government took a step in the right direction by recognizing the value of doing justice differently. Consequently, a Taskforce on Alternative Justice Systems was appointed in March 2016 to examine various traditional and informal approaches to justice in Kenya (Judiciary of Kenya, 2020). This aimed to give effect to the Judiciary's constitutional mandate under Article 159(2)(c), which requires the Judiciary to promote alternative forms of dispute resolution. Therefore, the Taskforce's main goal was to foster harmony between alternative justice systems and the formal court system and improve access to justice for Kenyans (Judiciary of Kenya, 2020).

Notably, Kenya's Alternative Justice Policy (2020) supports traditional, informal, and community-based dispute resolution to improve access to justice, especially for marginalized groups. The policy's main aim is to mainstream alternative justice systems by linking them with formal justice, hence reducing court backlogs and providing culturally relevant and affordable solutions. Consequently, the policy document provides the framework for these efforts, ensuring compliance with human rights standards while respecting local contexts (Judiciary of Kenya, 2020).

Undoubtedly, Alternative justice systems hold great promise in enhanced access to justice for many Kenyans, given their accessibility, affordability, and cultural relevance. In

a holistic sense, alternative justice systems are part and parcel of the everyday life of the ordinary Kenyan, and that explains why many communities have made efforts to protect, preserve, and promote traditional dispute resolution mechanisms (Judiciary of Kenya, 2020). It is important to note that one of the key reasons why Alternative justice systems continue to thrive in Kenya is because of their restorative justice component. Accordingly, Alternative justice systems emphasize the importance of repairing harm and restoring relationships between victims, offenders, and communities.

These processes, such as victim-offender mediation, negotiation, and traditional dispute resolution, provide opportunities for dialogue, accountability, and healing outside of the formal courtroom setting. Alternative justice systems also prioritize community involvement and empowerment in responding to crime and conflict, and recognize the importance of local knowledge, resources, and support networks in addressing the unique needs and challenges of communities, making them very attractive to most Kenyans.

Resistance from the mainstream criminal justice system to adopting alternative justice systems

The criminal justice system plays a crucial role in maintaining social order, addressing crime, and ensuring public safety. However, traditional punitive approaches employed by mainstream criminal justice systems have faced increasing scrutiny due to their limitations in promoting rehabilitation, reducing recidivism, and addressing the underlying causes of crime. Alternative justice systems offer innovative approaches that prioritize healing, restoration, and community involvement. Despite their potential benefits, mainstream criminal justice systems often resist adopting alternative approaches. This section explores the reasons behind this resistance and examines the challenges to mainstreaming alternative justice systems.

Against this backdrop, mainstream criminal justice systems are deeply entrenched in traditional punitive practices and have been reinforced by decades of policy, procedure, and institutional culture. The inertia of these systems makes it challenging to implement alternative approaches that diverge from established norms and practices. Bureaucratic structures, resistance to change, vested inertia, and resistance to adopting alternative justice systems. Political leaders and policymakers often prioritize tough-on-crime rhetoric and punitive measures as a means of appealing to constituents and demonstrating a commitment to public safety. This makes it difficult for policymakers to champion alternative justice systems that may be perceived as soft on crime. As a result, there is a lack of political goodwill to allocate resources and support the mainstreaming of alternative justice systems. Some of the reasons for the resistance of alternative justice systems include, for instance, resource constraints.

Mainstream criminal justice systems operate within constrained budgets and limited resources, which can pose significant barriers to the adoption of alternative justice systems. Implementing alternative approaches such as restorative justice, transformative justice, and community-based initiatives requires investment in training, infrastructure, and support services. However, traditional law enforcement, prosecution, and incarceration prevail over alternative justice programs. Moreover, various stakeholders within the criminal justice system, including law enforcement agencies, are concerned about job

security, professional identity, and perceived efficacy. Law enforcement agencies, in particular, may be resistant to alternative approaches that challenge their authority or require shifts in their enforcement practices. Similarly, prosecutors and judges may be hesitant to deviate from established legal procedures and sentencing guidelines. Public perception also plays a significant role in shaping criminal justice policies and practices. Misconceptions and stereotypes about alternative justice systems, such as restorative justice being lenient or ineffective, can influence public opinion and fuel resistance to their adoption. Fear of crime, skepticism about rehabilitation, and a desire for swift and certain punishment may also contribute to public resistance to alternative approaches.

Resistance to restorative justice in the United States

In the United States, restorative justice programs have faced resistance from mainstream criminal justice systems despite growing evidence of their effectiveness in reducing recidivism, increasing victim satisfaction, and promoting community healing. Resistance to restorative justice in the United States can be attributed to a variety of factors, including factors such as legal and Procedural Barriers. Restorative justice programs may face legal and procedural barriers within the criminal justice system, including statutory limitations, judicial discretion, and concerns about due process rights. These barriers can impede the implementation and expansion of restorative justice initiatives. Secondly, skepticism from law enforcement and prosecutors can impede restorative justice, given that law enforcement agencies and prosecutors may be skeptical of restorative justice programs due to concerns about accountability, public safety, and the potential for retraumatizing victims. Skepticism from these stakeholders can hinder collaboration and referral processes for restorative justice cases. Thirdly, funding and resource constraints can pose challenges to the sustainability and scalability of restorative justice initiatives. Restorative justice programs rely on funding and resources to operate effectively. However, limited funding, resource constraints, and competing priorities within criminal justice budgets are a challenge.

Conclusively, resistance to adopting alternative justice systems within mainstream criminal justice systems is driven by a combination of institutional inertia, lack of political will, resource constraints, resistance from stakeholders, and public perception. Overcoming these barriers requires concerted efforts from policymakers, practitioners, advocates, and communities to challenge entrenched norms, promote evidence-based practices, and advocate for systemic reforms. By addressing the root causes of resistance and fostering greater understanding and support for alternative approaches, mainstream criminal justice systems can move towards a more equitable, effective, and humane approach to addressing crime and promoting justice.

Conclusion, policy implications, and recommendations

As previously discussed, peacemaking represents a fundamental aspect of alternative justice systems, offering a transformative approach to addressing crime, conflict, and harm. As alternative justice systems prioritize healing, restoration, and reconciliation, the principles of peacemaking emerge as central components in promoting social justice and community well-being. Accordingly, this section examines the significance of

peacemaking in alternative justice systems and its implications for the implementation and recommendations of criminal justice policy.

Significance of peacemaking in alternative justice systems

Peacemaking in alternative justice systems embodies a paradigm shift from punitive measures toward restorative and transformative approaches. It emphasizes nonviolent conflict resolution and promotes healing and reconciliation. The significance of peacemaking in alternative justice systems can be understood through several key aspects, such as healing and restoration, and community engagement. Peacemaking prioritizes the healing and restoration of individuals and communities affected by crime. Through processes such as victim-offender mediation, restorative circles, and transformative justice initiatives, peacemaking provides opportunities for dialogue, accountability, and repair. By acknowledging the harm caused and facilitating meaningful empowerment, individuals can move forward from the trauma of victimization or perpetration.

Moreover, through community engagement, peacemaking encourages active participation and collaboration within communities, recognizing the importance of community members in addressing crime and promoting social cohesion. Given that alternative justice systems engage community stakeholders in ownership and responsibility for maintaining peace and order, communities are empowered to take an active role in shaping their responses to crime. Peacemaking, therefore, becomes a tool for strengthening social bonds, building trust, and promoting collective well-being.

Importantly, Peacemaking challenges the punitive norms and practices of mainstream criminal justice systems, advocating for systemic reforms that prioritize healing, restoration, and social justice. Alternative justice systems call attention to the limitations of punitive approaches and the need for policies and practices that address the root causes of crime, such as poverty, inequality, and systemic discrimination. By promoting greater equity, fairness, and inclusivity, inequality and systemic discrimination in the criminal justice system can be reduced. The outcome thus promotes peacemaking while also contributing to a more just and humane approach to crime prevention and social justice promotion.

Implications for criminal justice Policy implementation

The significance of peacemaking in alternative justice systems has important implications for the implementation of criminal justice policies and practices. Several recommendations can be made to incorporate peacemaking principles into criminal justice policy. Firstly, the principles of restorative and transformative justice should be prioritized and integrated into mainstream criminal justice systems by policymakers. This includes expanding access to restorative justice programs, incorporating restorative practices into court procedures, and providing training for justice practitioners on restorative and transformative approaches.

Secondly, policymakers should support the development and expansion of community-Based initiatives that prioritize community involvement and empowerment. This may involve investing in community policing strategies, restorative justice centers, and neighborhood mediation programs that promote collaboration between law enforcement agencies, community organizations, and residents.

Policymakers should invest in public education and awareness campaigns to promote understanding and support for alternative justice systems and peacemaking principles. This may involve outreach efforts to schools, community organizations, and the media to raise awareness about the benefits of restorative and transformative approaches and dispel misconceptions about their effectiveness. This could also include providing financial support for restorative justice programs, training programs for justice practitioners, and research on the effectiveness of alternative approaches in addressing crime and promoting community well-being.

In conclusion, the significance of peacemaking in alternative justice systems lies in its transformative potential to address crime, promote healing, and foster community resilience. By prioritizing healing, restoration, and reconciliation, alternative justice systems offer a path toward a more just, compassionate, and peaceful society. Incorporating peacemaking principles into criminal justice policies and practices can thus lead to more effective, equitable, and humane responses to crime, ultimately promoting social justice and community well-being for all. As policymakers continue to explore ways to reform criminal justice systems, embracing the principles of peacemaking and alternative justice systems will be essential in creating a more equitable and just society for future generations.

Notes

1. See Alternative Justice Systems Framework Policy, retrieved from https://www.unodc.org/documents/easternafrika/Criminal%20Justice/AJS_Policy_Framework_2020_Kenya.pdf (Last visited 28 March 2024).
2. See 'CJ urges judges to champion a multi-door approach to justice delivery and embrace technology' retrieved from <https://judiciary.go.ke/cj-urges-judges-to-champion-multi-door-approach-to-justice-delivery-and-embrace-technology/#:~:text=She%20added%3A%20%E2%80%9CIn%20this%20regard,Kenyans%2C%20particularly%20the%20vulnerable.%E2%80%9D> (Last visited 28 March 2024).
3. See <https://ajskenya.or.ke/about-us/> (Last visited 12 December 2025).

Author contributions

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